

Mini Paper — 1.5 Legal, Moral, Cultural & Ethical Issues

— ANSWER SHEET

Separate answer sheet / mark scheme — keep for marking.

Mark scheme

Question 1 [4] (AO1) — 1 mark per offence correctly stated (max 3) plus 1 mark for valid examples; total capped at 4. - **Offence 1:** Unauthorised access to computer material — e.g. logging into someone else's account / guessing a password. - **Offence 2:** Unauthorised access with intent to commit or facilitate a further offence — e.g. hacking a bank to commit fraud. - **Offence 3:** Unauthorised modification of computer material — e.g. spreading a virus/ransomware or deleting files.

Examiner tip: Name all three offences before adding examples — the offences carry most of the marks, not the examples.

Question 2 [4] (AO1/AO2) — Up to 2 marks per principle (1 for stating it, 1 for applying it to this data); max 4. Any two of: - **Integrity and confidentiality (security)** — heart-rate and location data must be kept secure, e.g. encryption and access control. - **Data minimisation** — only collect data needed for the fitness service (e.g. question whether constant location is necessary). - **Storage limitation** — must not keep the data longer than necessary. - **Purpose limitation** — only use the data for the stated fitness purpose, not sell it to insurers/advertisers. - **Lawful, fair and transparent** — have a lawful basis and tell users how their data is used. - **Accuracy** — keep records accurate and up to date.

Examiner tip: Tie each principle to the *specific* data in the scenario (location, heart-rate) — generic definitions alone lose the application marks.

Question 3 [5] (AO2) — 1 mark for naming the Act; 1 mark per action correctly mapped to an offence; up to 2 marks for justification. Max 5. - The **Computer Misuse Act 1990** applies throughout (1). - Using the manager's password to log in = **Offence 1, unauthorised access** (1). - Copying the confidential client list with intent to use/take it = **Offence 2, unauthorised access with intent to commit a further offence** (1). - Deleting project files = **Offence 3, unauthorised modification** (1). - Justification: access was without authorisation regardless of damage; the deletion impairs/modifies data; strong answers note that a **DPA** breach may also arise if the client list is personal data taken from the controller (1).

Examiner tip: Map *each* action to a numbered offence rather than just naming the Act — the question rewards correct 1/2/3 labelling.

Question 4 [5] (AO1/AO2) (a) [3] — Up to 3 marks: - Names the **Copyright, Designs and Patents Act 1988** (1). - Copyright protects original works, and **software/source code counts as a literary work**; protection is automatic with no registration (1). - Copying and selling the code without a licence or permission infringes the rights-holder's copyright, who could take legal action (1).

(b) [2] — Up to 2 marks: - Copyright protects the **expression** of an idea, not the idea itself (1). - Two programs can solve the same problem independently; reimplementing the algorithm in your own code is not infringement — only copying the actual code is (1). (A patent, if granted, could protect a novel process — but copyright does not.)

Examiner tip: The expression-not-idea distinction is the key discriminator here; state it explicitly.

Question 5 [12] (AO2/AO3) — Marked by **levels of response**. Read the whole answer, place it in a band, then award a mark within the band.

Level	Marks	Descriptor
Level 3	9–12	Sophisticated, balanced discussion considering multiple stakeholders and both benefits and drawbacks , developed with clear reasoning. Accurate use of relevant terminology and legislation . Sustained line of argument leading to a justified conclusion that takes a clear position.
Level 2	5–8	Some balanced discussion; relevant points made but limited development or mostly one-sided ; some terminology/legislation; a basic or weakly justified conclusion.
Level 1	1–4	Fragmented points, mainly listing one side, little development, little/no use of legislation, no real conclusion.
	0	Nothing creditworthy.

Indicative content (not exhaustive; credit other valid points): - **Benefits**: faster, consistent decisions; handles huge claim volumes; removes human tiredness/inconsistency; cost savings for government/taxpayers; potentially fairer if rules applied uniformly. - **Drawbacks — AI bias**: trained on historical data, so it can **reproduce and amplify** past bias against certain groups (algorithmic bias). - **Drawbacks — transparency/accountability**: AI is a "black box"; claimants cannot easily understand or appeal a refusal ("computer says no"); unclear **who is responsible** when the system wrongly denies benefits — developer, company or government. - **Drawbacks — human factors**: loss of human judgement and empathy in sensitive, life-affecting decisions; digital-divide concerns if claimants must interact online. - **Legal framing: DPA 2018 / GDPR** — heart of claims is sensitive personal data, so security, purpose limitation and data minimisation apply; GDPR also gives rights around **automated decision making** (right to human review/to be informed). Job displacement of caseworkers links to **layoffs/automation**. - **Stakeholders**: benefit claimants (esp. vulnerable groups), government/taxpayers, displaced caseworkers, developers, regulators (ICO), society. - **Conclusion**: must take and justify a position, e.g. the system is acceptable only with **bias auditing, transparency, a right to human appeal and human oversight**, rather than fully automated decisions.

Examiner tip: Plan 3–4 points each with a counter-argument and at least two named laws before writing; a one-sided list, however long, is capped at Level 2 — the justified conclusion is what unlocks Level 3.